Virginia Department of Agriculture and Consumer Services
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RFP# 301-22-094

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ATTACHMENT A - OFFEROR'S REFERENCE DATA SHEET

1. **QUALIFICATIONS OF OFFEROR**: The Offeror must have the capability and capacity in all respects in order to fully satisfy all of the contractual requirements.

2. **YEARS IN BUSINESS**: Indicate the length of time you have been in the business of performing the services identified in this solicitation: 5 years and months.

3. **REFERENCES**: Indicate below a listing of at least three (3) recent references for which your firm has provide similar services. Include the dates of service and name and address of the person the agency has your permission to contact.

Client Name & Contact	Dates of Service	Address	Phone & Email Address
Prov, Inc. Henry Sorensen	2017 - Present	150 W Civic Center Drive, Suite 601, Sandy, UT 84070	henrys@provexam.com
Credentia Nurse Aide Jeff Anderson	April 2021 - Present	3 Bala Plaza West, Bala Cynwyd, PA, 19004	janderson@credentia.com
Freshman Institute - Aachen University of Applied Sciences Susanne Jähnig	April 2020 - Present	Raum/room 00A42 Heinrich-Mussmann-Str. 1 52428 Jülich | Germany	jaehnig@fh-aachen.de

I certify the accuracy of this information.

Signed:_____ Title: Chief Relations Officer

Name of Firm: ExamRoom.AI Corp

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Tab 2.

ATTACHMENT B – PROPOSED COST SCHEDULE

Note: The cost indicated below shall include all costs and expenses required to provide the services. The value indicated below will be used to evaluate the Cost of Services category in Section V. Evaluation Criteria.

Total cost charged to Examinees per exam $ Please see Appendix 1 for full pricing

Examinees are responsible for all costs associated with utilizing the online systems and VDACS will not be responsible for any charges.

List any additional services and associated costs that may be offered for consideration below:

_____ $_____

_____ $_____

_____ $_____

_____ $_____

_____ $_____

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Tab 3.

SPECIFIC REQUIREMENTS OF PROPOSAL

The Offeror's Plan and Approach for providing the services. The response should address each section in the III. Statement of Needs as outlined in A. Specific Requirements and B. General Requirements.

III. STATEMENT OF NEEDS

A. Specific Requirements:

VDACS is seeking proposals offering a solution of providing an on-line remote option for examinations that determine minimum competency in Virginia's pesticide laws and regulations and in basic pesticide labeling, application techniques, and safe handling, taking into consideration the following:

1. **Offerors shall be able to provide services that allow for an individual ("Examinee") to take a VDACS examination ("Exam") online. The Examinee will be responsible for any costs or fees to utilize the online system and no charges shall be levied to VDACS**

   The ExamRoom.AI platform facilitates the process for an individual to schedule and pay for their exam by themselves. Individuals can pay via credit or with debit card on the ExamRoom.AI platform. Upon payment approval, the individual can successfully complete their exam scheduling.

   We are also in the process of integrating with PayPal to provide an additional payment option for individuals to pay for exam scheduling.

2. **Offerors shall have the staff, supervision, and expertise to provide the services.**

   ExamRoom.AI is staffed accordingly based on the volume of exams being monitored. If a client or organization needs to ramp up due to testing events or increased testing volume, ExamRoom.AI will work with the client to create a Gantt Chart based on the current and projected volumes to ensure that ExamRoom.AI will continuously maintain the required agents and staff to support the client.

   Currently, we have agents in two (2) separate locations and are in the process of implementing a third location to ensure that if there are any technical issues or otherwise, a subsequent location can receive the routed test-takers to ensure smooth testing process and protocols.

3. **The Awarded Offeror shall provide all technical support to examinee for online remote testing.**

   ExamRoom.AI will provide all technical support to the individuals via chat support, email, and phone. Technical support is available 24/7 and there is no additional charge to the individual for utilizing technical support if needed.

   In an effort to reduce technical calls, on the test-takers dashboard (on the ExamRoom.AI platform), individuals can run a system check any time before their scheduled exam. If there are any issues, instructions are provided. If an individual is not computer or tech savvy with their laptop or desktop computer, information is provided on how to contact the technical support agents (either in real-time or by making an appointment at the individuals earliest available time).

   Technical support can be provided over the phone, chat instruction, or through remote desktop approval for the agent to access the test-takers computer to resolve issues in a timely manner. In this scenario, the

individual must agree to the terms and conditions and grant access through a secured link. The entire session is recording for the security of the individual and ExamRoom.AI. The individual can request a copy of the transcript and video recording anytime.

Agents provide the routine system checks:

- JavaScript enabled
- Updated browser version
- Microphone and camera enabled (and working)
- Sufficient memory/CPU
- Firewall settings
- Screenshare permission

4. **The online service shall include security precautions ensuring the integrity of the exam questions and ensuring the examinee that is registered to take the Exam is the individual who is authorized to take the Exam.**

To ensure the integrity of the exam is maintained, we provide several security features.

The first, and most important feature of our platform is that ALL live person proctors are AI assisted. The AI will flag situations during the exam, including opening another tab or application, using restricted keys (for copy, paste, etc.), and amount of people in the camera (e.g., 0, multiple, back to 1). All flags are timestamped and can be reviewed in the recording.

ExamRoom.AI offers two other security features: <u>ExamRoom Extension and 360 App</u>

<u>ExamRoom Extension:</u>
The ExamRoom extension is a browser-based lockdown feature that has been analyzed and approved by Google. This extension will lock down certain function of the computer and browser application. Features include:

- Restriction of right-click function (which provides access to printing, downloading, copy/paste, etc.)
- Restriction of sticky or short cut keys (combinations using Ctrl, FN, Alt, Shift, Print Screen – which are used for copy/paste/saving/screenshots/printing)
- Whitelisted sites (Individuals can only access websites that are whitelisted)
- White out screen (when an induvial attempts to use a restricted key or key combination, the whole screen turns white for ten (10) seconds)
- One-click uninstallation at the end of the exam

<u>360 Application:</u>
With the ExamRoom.AI 360 app, we use the test-takers smartphone or tablet to provide the proctor a third additional stream to monitor during the exam. The app will use the device's camera, which is propped in such a way that the proctor can see the candidate's profile and computer simultaneously.

With the view from the computer webcam, the desktop view, and the 360 app, the proctor can see the entire surrounding of the test-taker during the exam.

To ensure it is the correct person testing, during the onboarding process, the Onboarding Agent (OBA) will review the provided identification and ensure that the name matches on the ID and the account, as well as the picture. The OBA will also ensure that the ID is valid and not expired.

To ensure there is no confusion or difficulties in the identity verification during onboarding, it is stressed that individuals create their accounts using the name on their current government issued photo ID.

5. **The Awarded Offeror will be responsible for providing exam integrity and security precautions during the Exam that should include, at a minimum, the following:**

   a. **Identification screen using facial recognition;**

   During the onboarding process, the OBA will take a photo of the test-takers face and compare it to the government issued photo ID. We are currently working to implement an AI based facial recognition system that can verify the face with a provided database.

   b. **Proctoring of the Exam;**

   All proctors are AI assisted to help monitor all exams. Based on the rules provided by VDACS, the proctor can immediately stop the exam and report to the POC the behavior and situation that has been detected. With other security features ExamRoom.AI offers, we can provide high level security functions to protect the integrity of all exam levels.

   c. **Room screens to ensure there is no one else in the rooms;**

   During the onboarding process, each agent is required to conduct a thorough room scan to ensure that not only is the individual alone, but the agent will also ensure there are no prohibited items in the testing area based on the client rules, i.e., phone, additional monitors or devices, calculators, books, papers, etc.

   d. **Artificial Intelligence (AI) or live capabilities to recognize possible cheating during the Exam. If AI is used, session must be monitored/reviewed by a live individual to flag actions;**

   During all live person proctored exams, the agent is assisted with AI. Both the agent and the AI will issue timestamped flags based on the behavior and situations during the exam. All time stamped flags can be reviewed individually in the recording as needed.

   AI flags consist of changes in the person count in the camera, using restricted keys, excessive movement, changing tabs or applications, and the live person will issue flags as well.

   Proctors can also speak with the individual during the exam via the chat box and microphone. All communication is captured in the digital recordings as well.

   e. **Limits on examinee actions when taking the Exam (no screenshots, more than one window open etc.);**

   By utilizing the ExamRoom extension, these functions will be blocked through the browser automatically. If not electing for this service, the proctor will receive red flags from the AI (as well as from their own self-monitoring) and can either stop the exam or warn the individual based on the rules protocol put in place by the client.

   f. **A timed Exam;**

   The exam duration is decided by the client and will be applied to the exam and remote proctoring session accordingly.

   g. **A platform that holds exam questions;**
   Through our Einstein LMS, the client can add, store, edit, and change the exam items and format as and when needed. All changes will update in real-time.

h. **The ability to collect fees or "shut off fee collection";**

Through the Einstein or ExamRoom.AI platform, we can change the payment settings to allow or disable test-taker payment and can directly bill the client as requested.

i. **Expeditious turnaround time to receive exam results, preferably within twenty-four 24 hours, unless other timelines are agreed upon by VDACS depending on the type of Exam or Situation.**

All exam results captured in the Einstein LMS will be made available immediately if the exam consists of multiple choice, TF, select all that apply, etc. For questions that have short answer or essay, the responses are available immediately upon exam completion for a client reviewer to grade.

In the event the responses were not automatically saved in the system, exam results will be updated to the system with 24-48 based on the volume of unscored exams at the time.

6. **The Awarded Offeror shall be responsible to deliver the Exam to the Examinee and provide instructions explaining how to take the Exam along with any other information VDACS deems necessary.**

Candidates who are testing with ExamRoom.AI and our Einstein LMS will receive emails and manuals that include information on how to register an account, schedule an exam, exam rules and expectations (provided by VDACS), what to expect on exam day, and tips and information on what to do if there is a technical issue.

7. **The Awarded Offeror shall add or remove Exams upon request from VDACS and within an agreed upon time.**

Within the Einstein LMS, we can turn off or remove exams that have been entered into the system. Deactivation of an exam can occur immediately if needed, or within a timeline provided by VDACS.

8. **The Awarded Offeror shall be responsible for proctoring the exam for every Examinee that requests remote testing.**

In order for an individual to complete their scheduled exam, they must enter through the ExamRoom.AI platform to be remotely proctored. Candidates cannot access their exam outside of our remote proctoring platform.

Before connecting to an onboarding agent, the test-taker is asked to read and agree to the Terms and Conditions. If they do not agree to the terms of being recorded and monitored through their device, and decline rather then accept the terms, they will not be permitted to move forward to complete their exam.

9. **The Awarded Offeror shall be responsible for ensuring the provisions of the examinee's notice of authorization to take the exam are met, for example, only those Exams for which the examinee has been approved are accessible and can be taken and all Exams are to be taken during one sitting.**

ExamRoom.AI will follow the testing protocol of the client. VDACS will provide ExamRoom.AI either a file or provide an integration with the VDACS database to receive and verify approved test-takers for the assigned exam.

10. **ExamRoom.AI shall have the ability to provide reporting that should include, at a minimum,**

the following:

a. **Exam results reporting within the agreed upon time.**

   Through the Einstein LMS, we can provide reports within an agreed upon timeline.

b. **A report which indicates which questions were answered incorrectly.**

   We can provide this data in a report.

c. **A report which indicates if a particular question on the exam is often answered incorrectly.**

   Yes, we can provide this data in the reporting structure.

d. **A report of the number of Exams taken by category.**

   We can add this data into a comprehensive report or separately if preferred.

e. **A report of the pass-fail rates for all Exams by category.**

   Yes, we can provide this as part of a comprehensive report or separately if preferred.

11. The Awarded Offeror shall make access available to VDACS to update or revise Exam questions.

Through the Einstein LMS, VDACS can login to the client account and change, edit, add, or remove items as and when needed. VDACS can also change the format of a question from multiple choice to TF, etc.

The exam format can also be changed to include randomization and multiple test forms.

All changes will be updated immediately and there are no fees to access and edit the VDACS item and answer bank.

12. The Awarded Offeror shall score each Exam upon completion and provide preliminary score to VDACS and the examinee. Scores shall not be provided to the examinee if the Exam is flagged due to security issues, i.e. potential cheating.

Once the exam is completed and there were no cheating instances or cancellations, the individual will receive their results on the screen (if required) or via email within an hour or less from exam completion. The Admin for VDACS can login to the client account to check the scores or ExamRoom.AI can send a report of all scores within twenty-four (24) hours.

13. The Awarded Offeror shall provide access to VDACS to the online remote testing application to test the content and accessibility.

VDACS is free to test out content changes made on the exam at anytime and ExamRoom.AI will provide a staff member to assist during the process to take notes or assist with any technical issues during the demo.

14. Confidentiality: Due to examination security, the Awarded Offeror shall consider all exam questions and any related materials to be confidential and shall not disclose or provide questions or answers, to anyone other than VDACS, while performing the services.

ExamRoom.AI understands the time and expenses required to create, maintain, and secure any

and all client item banks. ExamRoom.AI will not share or disclose any item bank information to a test-taker or unauthorized individual. ExamRoom.AI also limits internal staff access to client item banks and accounts.

B. General Requirements:

1. **Offerors shall be a business regularly engaged and skilled in providing online remote examination services as described in this solicitation.**

   For the past six (6) years, ExamRoom.AI has been providing remote proctoring services to clients in various types of sectors. Consistently, ExamRoom.AI is updating and enhancing our platform to increase security measures and accessibility for all users.

   As AI technology is advancing, ExamRoom.AI is keeping ahead of the trends to enhance our platform and services to remain state-of-the-art and flexible for our users.

2. **The Awarded Offeror shall furnish all of the resources to provide the services.**

   ExamRoom.AI will furnish all of the services, agents, staff, and information to provide testing and remote proctoring services to VDACS.

   ExamRoom.AI will work with VDACS to collect all necessary testing information, i.e., exam/onboarding/proctoring rules, duration, scoring, etc. ExamRoom.AI will provide training for authorized VDACS staff to enter items into the Einstein LMS, edit item and answer bank, pull reports, and navigation in the ExamRoom.AI system to retrieve and review digital recordings, and verify scheduled dates.

   ExamRoom.AI will provide all necessary information, documentation, and manuals for VDACS staff and test-takers.

3. **It is expected that the Awarded Offeror shall perform all work under this contract with the Offeror's own workforce and will not subcontract any portion of the work. Offerors must clearly describe and provide details in their submission of any subcontracting proposed in providing the services.**

   ExamRoom.AI does not subcontract any portion of its work.

4. **Offerors may submit a copy of their standard agreement or terms and conditions as a separate attachment for review if required to be incorporated in a contract for services.**

Tab. 4

The Offeror's Experience and Qualifications to include, but not limited, to the following:

A. Describe the experience of the company including the number of years in business and any specialties.

ExamRoom.AI is a leader in secure, robust, and scalable remote online proctoring. Before we became ExamRoom.AI, we were a product of Prov, Inc. Prov, Inc specializes in test assessment for state, government, and private sector testing for a wide range of sectors.

Before designing and developing ExamRoom.AI, Prov, Inc. contracted with other remote proctoring vendors to provide fully online capable exams. During the process, Prov experienced several pain points, leading to changing multiple vendors.

When designing and developing the product, we listed out all the issues that we have faced with the other vendors, specifically based around pricing, flexibility, access, and service. With those ideas in mind, the platform was developed to provide our client's the tools they need to successfully and securely administer online exams.

In 2016, development began for the remote proctoring tool, with a focus on flexibility and security. By 2019, word of mouth and referrals from current clients increased the request for the remote online proctoring so much so that ExamRoom.AI was established as its own company to meet the demands of organizations requiring remote online proctoring.

The mission for ExamRoom.AI is simple, and possibly cliché: Provide security, service, and flexibility at an affordable price. ExamRoom.AI believes that clients should not be "nickeled and dimed" for features that are requested, which would possibly benefit the platform and services as a whole.

With our platform, we do not charge annual, maintenance, or integration fees. Features such as white labeling, rule customization, and dynamic documents are not charged. We do not charge cancellation, last minute scheduling/rescheduling fees because life happens, and money is tight for a lot of students. We also feel that students should not have to pay a fee for customer or technical support, as they are already stressed.

Due to the pandemic, and greater reliance on remote proctoring and online tools, we are consistently increasing our staff to ensure fewer wait times for Onboarding Agents and Proctors to meet the increasing demands of our clients and the market.

Another factor of our service that we take pride in is our Customer/Client Support. Our clients will work with a team of ExamRoom.AI staff directly, via phone, email, Skype, WhatsApp, etc. to provide support. You will have direct contact with live people (no IVR). Students too will have direct contact via phone, email, and chat support (located on our website) for instant and quick turnaround times for assistance.

Lastly, ExamRoom.AI looks to the future of testing and security. By implementing robust security methods, we are constantly improving, enhancing and applying new technologies in AI and security to our systems. As Artificial Intelligence and Augmented Reality are the future, ExamRoom.AI is proactively training our AI and implementing various AI services and features to further increase security and maintain high level exam integrity.

As an ISO 27001 and ISO 9001 certified company, we are compliant with data, security, and processes as required.

B. Identify and describe the experience and expertise level of the staff that will be administering the online exams.

All of our proctors receive a three (3) week training and certification class where they are trained on customer support, duties of position, technical/product training, and mock sessions.

Our team of engineers, developers, and data scientists come to ExamRoom.AI with college and professional experience. All staff, across all departments, are encouraged and sponsored by ExamRoom.AI to complete certification courses applicable to their specialty and department.

ExamRoom.AI also seeks out developers and engineers for internships to advance their career and the company.

C. Describe your firm's success in providing the services in scope to what is requested in this solicitation.

ExamRoom.AI is currently integrated with several test assessment platforms and can integrate with in-house test delivery platforms and whichever LMS is utilized by the institution. We have also developed our own test assessment and LMS to provide quality testing and registration at an affordable price with added flexibility.

To our clients, we provide full support in development, training, and customer service of the institution and their students/candidates.

ExamRoom has been a standalone business since April of 2019, but before branching out for increased opportunity and development, our remote proctoring platform was providing service to Prov's exams for approximately two (2) years.

Currently, we provide remote proctoring for over 40 organizations and with Prov, Inc., nine state's licensing exams for contractors.

Tab. 5

ATTACHMENT C - Small Business Subcontracting Plan

It is the goal of the Commonwealth that over 42% of its purchases be made from small businesses. All potential offerors are required to return this document with their response.

Small Business: "Small business (including micro)" means a business which holds a certification as such by the Virginia Department of Small Business and Supplier Diversity (DSBSD) on the due date for proposals. This shall also include DSBSD-certified women- owned and minority-owned businesses and businesses with DSBSD service-disabled veteran owned status when they also hold a DSBSD certification as a small business on the proposal due date. Currently, DSBSD offers small business certification and micro business designation to firms that qualify.

Certification applications are available through DSBSD online at www.SBSD.virginia.gov (Customer Service).

Offeror Name: ExamRoom.AI Corp

Preparer Name: Amanda Jayakeerthi **Date:** April 25, 2022

Who will be doing the work: □ **I plan to use subcontractors** ☑ **I plan to complete all work**

Instructions:

A. If you are certified by the DSBSD as a micro/small business, complete only Section A of this form.

B. If you are not a DSBSD-certified small business, complete Section B of this form. For the offeror to receive credit for the small business subcontracting plan evaluation criteria, the offeror shall identify the portions of the contract that will be subcontracted to DSBSD-certified small business for the initial contract period the initial contract period in Section B.

Offerors which are small businesses themselves will receive the maximum available points for the small business participation plan evaluation criterion, and do not have any further subcontracting requirements.

Offerors which are not certified small businesses will be assigned points based on proposed expenditures with DSBSD-certified small businesses for the initial contract period in relation to the offeror's total price for the initial contract period.

Points will be assigned based on each offeror's proposed subcontracting expenditures with DSBSD-certified small businesses for the initial contract period as indicated in Section B in relation to the offeror's total price.

Section A
If your firm is certified by the DSBSD provide your certification number and the date of certification.

Certification number: NA Certification Date: _____

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Section B

If the "I plan to use subcontractors" box is checked, populate the requested information below, per subcontractor to show your firm's plans for utilization of DSBSD-certified small businesses in the performance of this contract for the initial contract period in relation to the offeror's total price for the initial contract period. Certified small businesses include but are not limited to DSBSD-certified women-owned and minority-owned businesses and businesses with DSBSD service-disabled veteran-owned status that have also received the DSBSD small business certification.

Include plans to utilize small businesses as part of joint ventures, partnerships, subcontractors, suppliers, etc. It is important to note that this proposed participation will be incorporated into the subsequent contract and will be a requirement of the contract. Failure to obtain the proposed participation dollar value or percentages may result in breach of the contract.

B. Plans for Utilization of DSBSD-Certified Small Businesses for this Procurement

Subcontract #1

Company Name: _____ SBSD Cert #: _____

Contact Name: _____ SBSD Certification: _____

Contact Phone: _____ Contact Email: _____

Value % or $ (Initial Term): _____ Contact Address: _____

Description of Work: _____

Subcontract #2

Company Name: _____ SBSD Cert #: _____

Contact Name: _____ SBSD Certification: _____

Contact Phone: _____ Contact Email: _____

Value % or $ (Initial Term): _____ Contact Address: _____

Description of Work: _____

Subcontract #3

Company Name: _____ SBSD Cert #: _____

Contact Name: _____ SBSD Certification: _____

Contact Phone: _____ Contact Email: _____

Value % or $ (Initial Term): _____ Contact Address: _____

Description of Work: _____

Subcontract #4

Company Name: _____ SBSD Cert #: _____

Contact Name: _____ SBSD Certification: _____

Contact Phone: _____ Contact Email: _____

Value % or $ (Initial Term): _____ Contact Address: _____

Description of Work: _____

(Add additional Subcontractor information lines, if needed.)

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Tab. 6

ATTACHMENT D - State Corporation Commission Form Virginia State Corporation Commission (SCC) registration information.

The Offeror:

□ is a corporation or other business entity with the following SCC identification number: _____**-OR-**

□ is not a corporation, limited liability company, limited partnership, registered limited liability partnership, or business trust **-OR-**

✓□ is an out-of-state business entity that does not regularly and continuously maintain as part of its ordinary and customary business any employees, agents, offices, facilities, or inventories in Virginia (not counting any employees or agents in Virginia who merely solicit orders that require acceptance outside Virginia before they become contracts, and not counting any incidental presence of the Offeror in Virginia that is needed in order to assemble, maintain, and repair goods in accordance with the contracts by which such goods were sold and shipped into Virginia from Offeror's out-of-state location) **-OR-**

□ is an out-of-state business entity that is including with this proposal an opinion of legal counsel which accurately and completely discloses the undersigned Offeror's current contacts with Virginia and describes why those contacts do not constitute the transaction of business in Virginia within the meaning of § 13.1-757 or other similar provisions in Titles 13.1 or 50 of the *Code of Virginia*.

****NOTE** >>** Check the following box if you have not completed any of the foregoing options but currently have pending before the SCC an application for authority to transact business in the Commonwealth of Virginia and wish to be considered for a waiver to allow you to submit the SCC identification number after the due date for proposals (the Commonwealth reserves the right to determine in its sole discretion whether to allow such waiver):□

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Tab. 7

ATTACHMENT E - Exceptions

Complete the following. Check one option only.

_X_ Firm does not take any exceptions to the Statement of Needs, General Terms and Conditions, or Special Terms and Conditions.

OR

_____ Firm takes the following exception(s): (include page and section number and description of exception).

_____

_____

_____

_____

_____

_____

_____

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APPENDIX 1 - Pricing Matrix

Remote proctoring is based on exam duration

Fully Live		AI - Record & Review		Fully Automated	
$10	1st hour	$8	1st hour	$6	1st hour
$4	each additional hour	$4	each additional hour	$4	each additional hour
					Client reviews recordings

Test delivery pricing	Einstein LMS	
	$800	Per month-unlimited exams
	$1	Per student added to LMS

Security Add-ons	ExamRoom 360	$3 per exam, per hour
	ExamRoom Extension	$1 per exam